

Discovery Law & Motion

19. 9:01 AM CASE NUMBER: C22-00879
CASE NAME: NANCY STIPANICH VS. KIM FALAHATI
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES**
FILED BY: STIPANICH, NANCY
TENTATIVE RULING:

Matter **WITHDRAWN** by moving party's Notice of Withdrawal of Motion to Compel. The hearing is **VACATED**.

20. 9:01 AM CASE NUMBER: C24-01374
CASE NAME: ALI ERAMI VS. INGE PRASETIJO
***HEARING ON MOTION FOR DISCOVERY COMPEL JIN KIM, M.D.'S COMPLIANCE WITH DEPOSITION**
SUBPOENA FOR PRODUCTION OF BUSINESS RECORDS
FILED BY: PRASETIJO, INGE CHRISTINE
TENTATIVE RULING:

Defendant Inge Christine Prasetijo ("Defendant") filed a Motion to Compel Jin Kim, M.D.'s Compliance with Deposition Subpoena for Production of Business Records on November 25, 2025 (the "Motion to Compel"). By the Motion to Compel, Defendant seeks production of medical records relating to treatment records of plaintiff Ali Erami ("Plaintiff") pursuant to subpoena. The Motion to Compel was set for hearing on May 18, 2026.

Background

Defendant issued a third party records subpoena (the "Subpoena") to third party Jin Kim, M.D. ("Dr. Kim") seeking Plaintiff's medical records. See Declaration of Jennifer Sommer filed November 25, 2025 ("Supporting Declaration"), ¶4 and **Exhibit C** thereto. Specifically, Defendant sought the following records:

Scope of records limited to: 01/01/2016 to present only

Please obtain films/imaging in DICOM format.

All documents and records stored in any format or method including, but not limited to, all medical records, intake forms, patient completed forms and/or documents, correspondence, all office records, emergency room records or reports, inpatient and outpatient charts and records, lien files, SOAP notes, pathology records and reports, lab reports, pharmacy and prescription records, physical therapy records, sign-in sheets, all descriptions of exercises prescribed, documentation which indicate date and time of patient's appointments, insurance documents, all radiology reports and readings, and any other documents maintained pertaining to the care, treatment and examination of the patient; and

COPIES of all original x-rays films, CT scans, MRIs and any other scans or images taken and/or maintained, including a comprehensive list of all dates and body parts of all films, CT scans, MRIs and all other images or scans provided. All images and films must be provided on CD if available.

See Subpoena, Attachment 3, Supporting Declaration, **Exhibit C**.

Dr. Kim refused to comply with the Subpoena despite meet and confer efforts by counsel issuing the Subpoena. Supporting Declaration, ¶17.

The Proof of Service filed December 9, 2026 reflect service of the Motion to Compel on Dr. Kim, as well as Plaintiff's counsel.

Plaintiff filed an Opposition and related papers on May 5, 2026. No papers have been filed by Dr. Kim.

A Reply was filed May 8, 2026 by Defendant.

Analysis

When a deponent fails to answer any question or to produce any document under the deponent's control that is specified in the deposition subpoena, the party seeking discovery may move the court for an order compelling that production. Code Civ. Proc. § 2025.480.

Plaintiff describes certain meet and confer efforts made by Plaintiff and the lack of response by Defendant's counsel. See Declaration of Tom Shin filed May 5, 2026 ("Opposition Declaration"), ¶12 *et seq.*

However, the fault plainly lies on both sides. As noted in the Reply, before the motion was file Plaintiff's counsel failed to promptly engage with a request for authorization for the production of the records.

That is unfortunate, as greater responsiveness and cooperation on both sides may have resolved this matter much sooner.

As recited in the Reply, however, Dr. Kim has now complied, at this point, with the Subpoena. See Further Declaration of Jennifer Sommer filed May 8, 2026, ¶14.

Even if not rendered largely moot by the production, the Court would not have been inclined to grant this motion because the information put before the court failed to establish good cause for production of records to **the extent specified** in the subject Subpoena.

The subject claims arise out of a traffic accident alleged to have occurred on September 21, 2022. See Complaint, Supporting Declaration, **Exhibit A**. Plaintiff is alleged to have "sustained multiple injuries." *Id.* Discovery responses reflect Dr. Kim is Plaintiff's "primary care physician." See *id.* at **Exhibit B**. Plaintiff also asserts that "[d]uring his deposition, Plaintiff testified Dr. Kim told him his heart tissue was mostly dead (relevant to plaintiff's loss of earnings claim as self-employed contractor)." See *id.* at ¶13.

No further information is given in the Supporting Declaration regarding the nature or extent of the subject injuries or the relationship of the subpoenaed records to such injuries or other matters at issue. See Supporting Declaration, ¶¶1-10.

The Court notes that the Subpoena sought the broadest possible scope of medical records relating to Plaintiff going back to January 1, 2016, a date more than six years before the alleged accident. Among other things, no distinction is made in the request between records relating to treatment for areas of the body reasonably implicated by the subject accident/injuries versus other matters such as mental health treatment (and no showing is made as to why such records would be properly discoverable).

While some more narrowly tailored scope of records may well have been discoverable, the Court

would not have ordered a response to the Subpoena as presently framed. Nonetheless, the matter is moot, as noted above.

As relates to sanctions however, in light of the foregoing, the Court concludes that sanctions are not appropriate or justified. See Code Civ. Proc. § 2025.480(j) (“The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel an answer or production, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.”).

Disposition

The Court finds and orders as follows:

1. The Motion to Compel is **DENIED** as moot.
2. Sanctions are **DENIED**.
3. The Court shall issue the order after hearing.

21. 9:01 AM CASE NUMBER: C25-01233
CASE NAME: SAYED MASSOUD VS. TOYOTA MOTOR SALES, U.S.A., INC.
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUESTS FOR**
ADMISSIONS BY DEFENDANT TOYOTA MOTOR SALES, U.S.A., INC.
FILED BY: MASSOUD, SAYED
TENTATIVE RULING:

Matter **WITHDRAWN** by moving party’s Notice of Withdrawal filed May 5, 2026. The hearing is **VACATED**. The other pending discovery motions were withdrawn as well.

Courtroom Clerk’s Session

22. 1:30 PM CASE NUMBER: N25-0829
CASE NAME: DUONG ESTUARY COVE, LLC VS. CONTRA COSTA COUNTY
HEARING IN RE: PETITION FOR WRIT OF MANDATE
FILED BY:
TENTATIVE RULING:

CONTINUED by the Court to June 29, 2026, at 1:30 p.m.